



Marriage (Scotland) Act 1977

1977 CHAPTER 15

An Act to make new provision for Scotland as respects the law relating to the constitution of marriage, and for connected purposes. [26th May 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Minimum age for marriage

1.—(1) No person domiciled in Scotland may marry before he attains the age of 16. Minimum age for marriage

(2) A marriage solemnised in Scotland between persons either of whom is under the age of 16 shall be void.

Forbidden degrees

2.—(1) A marriage between a man and any woman related to him in a degree specified in column 1 of Schedule 1 to this Act, or between a woman and any man related to her in a degree specified in column 2 of that Schedule shall be void if solemnised— Marriage of related persons.

(a) in Scotland ; or

(b) at a time when either party is domiciled in Scotland.

(2) For the purposes of this section a degree of relationship exists—

(a) in the case of a degree specified in paragraph 1 of Schedule 1 to this Act, whether it is of the full blood or the half blood ; and

(b) in the case of a degree specified in paragraph 1 or 2 of the said Schedule, even where traced through or to any person of illegitimate birth.

(3) Where a person is related to another person in a degree not specified in Schedule 1 to this Act that degree of relationship shall not, in Scots law, bar a valid marriage between them ; but this subsection is without prejudice to—

(a) the effect which a degree of relationship not so specified may have under the provisions of a system of law other than Scots law in a case where such provisions apply as the law of the place of celebration of a marriage or as the law of a person's domicile ; or

(b) any rule of law that a marriage may not be contracted between persons either of whom is married to a third person.

Preliminaries to regular marriage

Notice of
intention to
marry.

3.—(1) Subject to subsections (2) to (4) below, each of the parties to a marriage intended to be solemnised in Scotland shall submit to the district registrar a notice, in the prescribed form, of intention to marry (in this Act referred to as a “marriage notice”) accompanied by the prescribed fee, his birth certificate and—

(a) if he has previously been married and the marriage has been dissolved, a copy of the decree of divorce, dissolution or annulment ;

(b) in the case of a widow or widower, the death certificate of the former spouse ;

(c) in any case where a certificate is required under subsection (5) below, that certificate.

(2) If a party is unable to submit his birth certificate or any document referred to in paragraph (a) or (b) of subsection (1) above, he may in lieu thereof make a declaration stating that for reasons specified in that declaration it is impracticable for him to submit that certificate or document ; and he shall provide the district registrar with such—

(a) information in respect of the matters to which such certificate or document would have related ; and

(b) documentary evidence in support of that information, as the district registrar may require.

(3) If any document submitted under subsection (1) above is written in a language other than English, the party submitting it shall attach to that document a translation of it in English certified by the translator as a correct translation.

(4) Where a party to a marriage intended to be solemnised in Scotland is residing in another part of the United Kingdom, he may submit to the district registrar a valid certificate for marriage (in this Act referred to as an "approved certificate") issued in that other part; and where that party so submits an approved certificate, he need not, unless the Registrar General so directs, comply with the other provisions of this section.

(5) A party to a marriage intended to be solemnised in Scotland who is not domiciled in any part of the United Kingdom is required, if practicable, to submit under subsection (1)(c) above a certificate, issued by a competent authority in the state in which the party is domiciled, to the effect that he is not known to be subject to any legal incapacity (in terms of the law of that state) which would prevent his marrying:

Provided that such a party—

- (i) may, where under the law of the state in which he is domiciled his personal law is that of another foreign state, submit in lieu of the said certificate a like certificate issued by a competent authority in that other state;
- (ii) need not submit a certificate under paragraph (c) of subsection (1) above if he has been resident in the United Kingdom for a period of 2 or more years immediately before the date on which he submits a marriage notice under that subsection in respect of the said marriage.

4.—(1) On receipt of a marriage notice or an approved certificate in respect of a party to an intended marriage, the district registrar shall forthwith enter such particulars, extracted from such notice or certificate, as may be prescribed, together with the date of receipt by him of such notice or certificate, in a book (in this Act referred to as "the marriage notice book") supplied to him for that purpose by the Registrar General.

Marriage notice book and list of intended marriages.

(2) The district registrar shall, in relation to each intended marriage in respect of which he has received a marriage notice or an approved certificate, and as soon as practicable after such receipt, make an entry giving the names of the parties to, and the proposed date of, that marriage in a list which he shall display in a conspicuous place at the registration office; and such entry shall remain so displayed until the said date has elapsed.

(3) Any person claiming that he may have reason to submit an objection to an intended marriage, or to the issue of a certificate under section 7 of this Act to a party to such marriage, may, free of charge and at any time when the registration office is open for public business, inspect any entry relating to the marriage in the marriage notice book.

Objections to marriage.

5.—(1) Any person may at any time before the solemnisation of a marriage in Scotland submit an objection in writing thereto to the district registrar:

Provided that where the objection is on the ground mentioned in subsection (4)(d) below, it shall be accompanied by a supporting certificate signed by a registered medical practitioner.

(2) Where the district registrar receives an objection in accordance with subsection (1) above he shall—

(a) in any case where he is satisfied that the objection relates to no more than a misdescription or inaccuracy in the marriage notice or approved certificate, notify the parties to the marriage of the nature of the objection and make such enquiries into the matter mentioned in it as he thinks fit; and thereafter he shall, subject to the approval of the Registrar General, make any necessary correction to any document relating to the marriage;

(b) in any other case—

(i) forthwith notify the Registrar General of the objection;

(ii) pending consideration of the objection by the Registrar General, suspend the completion or issue of the Marriage Schedule in respect of the marriage;

(iii) where, in the case of a marriage to be solemnised by an approved celebrant, the Marriage Schedule has already been issued to the parties, if possible notify that celebrant of the objection and advise him not to solemnise the marriage pending the said consideration.

(3) If the Registrar General is satisfied, on consideration of an objection of which he has received notification under subsection (2)(b)(i) above, that—

(a) there is a legal impediment to the marriage, he shall direct the district registrar to take all reasonable steps to ensure that the marriage does not take place and shall notify, or direct the district registrar to notify, the parties to the intended marriage accordingly;

(b) there is no legal impediment to the marriage, he shall inform the district registrar to that effect.

(4) For the purposes of subsection (3) above and section 6 of this Act, there is a legal impediment to a marriage where—

(a) that marriage would be void by virtue of section 2(1) of this Act;

(b) one of the parties is, or both are, already married;

(c) one or both of the parties will be under the age of 16 on the date of solemnisation of the intended marriage;

- (d) one or both of the parties is or are incapable of understanding the nature of a marriage ceremony or of consenting to marriage ;
- (e) both parties are of the same sex ; or
- (f) one or both of the parties is, or are, not domiciled in Scotland and, on a ground other than one mentioned in paragraphs (a) to (e) above, a marriage in Scotland between the parties would be void *ab initio* according to the law of the domicile of the party or parties as the case may be.

(5) A person who has submitted an objection in accordance with subsection (1) above may at any time withdraw it:

Provided that the Registrar General shall be entitled to have regard to that objection notwithstanding such withdrawal.

6.—(1) Where the district registrar has received a marriage notice or approved certificate in respect of each of the parties to a marriage intended to be solemnised in Scotland and is satisfied that there is no legal impediment to the marriage or, as the case may be, is informed by the Registrar General under section 5(3)(b) of this Act that there is no such legal impediment, he shall, subject to subsection (2) below, complete a Marriage Schedule in the prescribed form.

(2) If a period of more than 3 months has elapsed since the date of receipt (as entered by the district registrar in the marriage notice book) of a marriage notice or an approved certificate in respect of a party to the marriage, the Registrar General may direct that the district registrar shall not complete the Marriage Schedule unless that party submits a new marriage notice or approved certificate to the district registrar.

(3) Subject to subsection (4) below, in the case of a marriage to be solemnised by an approved celebrant, the Marriage Schedule completed in accordance with subsection (1) above shall be issued by the district registrar at the registration office to one or both of the parties to the intended marriage.

(4) The district registrar shall not issue a Marriage Schedule under subsection (3) above—

- (a) within 14 days of the date of receipt (as entered by him in the marriage notice book) of a marriage notice in respect of the marriage to which the Marriage Schedule relates, except where—

- (i) he has received a written request from one or both of the parties for the issue of the Marriage Schedule on a specified date within the said 14 days stating the reason for the request ; and

- (ii) he has been authorised to issue the Marriage Schedule on that specified date by the Registrar General ;

- (b) on a date earlier than 7 days before the date of the intended marriage unless he has been authorised to issue the Marriage Schedule on that earlier date by the Registrar General.

(5) Subject to subsections (6) and (7) below and section 13(3) of this Act, a religious marriage may be solemnised only on the date and at the place specified in the Marriage Schedule.

(6) Subject to subsection (7) below, if, for any reason, the marriage cannot be solemnised on the date or at the place so specified and a new date or place is fixed for the marriage, the district registrar shall—

- (a) issue another Marriage Schedule under subsection (3) above, in lieu of that already issued, specifying that new date or place ; or
- (b) substitute, or direct the approved celebrant to substitute, that new date or place in the Marriage Schedule already issued.

(7) Subsection (6) above shall not apply in a case where the new date fixed for the marriage is more than 3 months after the date for the marriage as specified in the Marriage Schedule already issued or where the new place so fixed is in a different registration district, but in such a case the Registrar General may, according to the circumstances, direct—

- (a) the district registrar for the district in which the marriage is to be solemnised to proceed as in paragraph (a) or (b) (whichever the Registrar General considers the more appropriate) of subsection (6) above ; or
- (b) each party to the marriage to submit to the said district registrar a new marriage notice or approved certificate.

Marriage
outside
Scotland
where a party
resides in
Scotland.

7.—(1) Where a person residing in Scotland is a party to a marriage intended to be solemnised in—

- (a) England or Wales with a party residing in England or Wales and desires ; or
- (b) any country, territory or place outside Great Britain, and, for the purpose of complying with the law in force in that country, territory or place, is required to obtain from a competent authority in Scotland,

a certificate in respect of his legal capacity to marry, he may submit, in the form and with the fee and documents specified in section 3(1)(a) and (b) of this Act, notice of intention to marry to the district registrar for the district in which he resides (the said registrar being in this section referred to as the “ appropriate registrar ”) as if it were intended that the marriage should

be solemnised in that district, and sections 3(2) and (3) and 4 of this Act shall apply accordingly.

(2) The appropriate registrar shall, if satisfied (after consultation, if the appropriate registrar considers it necessary, with the Registrar General) that a person who has by virtue of subsection (1) above submitted a marriage notice to him is not subject to any legal incapacity (in terms of Scots law) which would prevent his marrying, issue to that person a certificate in the prescribed form that he is not known to be subject to any such incapacity:

Provided that the certificate shall not be issued earlier than 14 days after the date of receipt (as entered by the appropriate registrar in the marriage notice book) of the marriage notice.

(3) Any person may, at any time before a certificate is issued under subsection (2) above, submit to the appropriate registrar an objection in writing to such issue; and the objection shall be taken into account by the appropriate registrar in deciding whether, in respect of the person to whom the certificate would be issued, he is satisfied as mentioned in the said subsection (2).

Persons who may solemnise marriage

8.—(1) A marriage may be solemnised by and only by—

Persons who
may solemnise
marriage.

(a) a person who is—

- (i) a minister of the Church of Scotland; or
- (ii) a minister, clergyman, pastor, or priest of a religious body prescribed by regulations made by the Secretary of State, or who, not being one of the foregoing, is recognised by a religious body so prescribed as entitled to solemnise marriages on its behalf; or
- (iii) registered under section 9 of this Act; or
- (iv) temporarily authorised under section 12 of this Act; or

(b) a person who is a district registrar or assistant registrar appointed under section 17 of this Act.

(2) In this Act—

- (a) any such person as is mentioned in subsection (1)(a) above is referred to as an “approved celebrant”, and a marriage solemnised by an approved celebrant is referred to as a “religious marriage”;
- (b) any such person as is mentioned in subsection (1)(b) above is referred to as an “authorised registrar”, and a marriage solemnised by an authorised registrar is referred to as a “civil marriage”.

Religious Marriages

Registration of
nominated
persons as
celebrants.

9.—(1) A religious body, not being—

(a) the Church of Scotland ; or

(b) prescribed by virtue of section 8(1)(a)(ii) of this Act,
may nominate to the Registrar General any of its members who
it desires should be registered under this section as empowered
to solemnise marriages :

Provided that any such nominee must, at the date of his
nomination, be 21 years of age or over.

(2) The Registrar General shall reject a nomination made
under subsection (1) above if in his opinion—

(a) the nominating body is not a religious body ; or

(b) the marriage ceremony used by that body is not of an
appropriate form ; or

(c) the nominee is not a fit and proper person to solemnise
a marriage ; or

(d) there are already registered under this section sufficient
members of the same religious body as the nominee
to meet the needs of that body.

(3) For the purposes of subsection (2)(b) above, a marriage
ceremony is of an appropriate form if it includes, and is in no
way inconsistent with—

(a) a declaration by the parties, in the presence of each
other, the celebrant and two witnesses, that they accept
each other as husband and wife ; and

(b) a declaration by the celebrant, after the declaration
mentioned in paragraph (a) of this subsection, that the
parties are then husband and wife,

and the Registrar General may, before deciding whether to
accept or reject a nomination, require the nominating body to
produce to him in writing the form of words used at its marriage
ceremonies.

(4) Where the Registrar General accepts a nomination made
to him under subsection (1) above, he—

(a) shall determine the period during which the nominee
shall be empowered to solemnise marriages, being a
period of not more than 3 years ; and

(b) may determine that the nominee shall be empowered to
solemnise marriages only in such area as the Registrar
General may specify,

and may make his acceptance subject to such other conditions
as he thinks fit :

Provided that nothing in paragraph (a) above shall preclude the Registrar General from accepting a further nomination of that nominee, in accordance with this section, to take effect at any time after the end of the period determined by the Registrar General under the said paragraph (a).

(5) The Registrar General shall—

(a) where he accepts a nomination made to him under subsection (1) above—

(i) so inform the nominee and the nominating body, specifying the period during which the acceptance shall have effect and any condition to which the acceptance is subject ;

(ii) enter the name of the nominee, the nominating body and such other particulars as he deems appropriate in a register which he shall establish and maintain and which shall be made available for public inspection at all reasonable times without charge ;

(b) where he rejects the nomination, by notice in writing inform the nominating body of the reasons for that rejection.

(6) The nominating body may, if aggrieved by a rejection under this section, within 28 days of receiving notice of that rejection, appeal to the Secretary of State, and on any such appeal the Secretary of State may direct the Registrar General to accept the nomination or may confirm its rejection and shall inform the nominating body of his direction or confirmation, as the case may be, and the reason for it ; and such direction or confirmation shall be final :

Provided that if a reason given for a confirmation of the rejection of a nomination is that the nominating body is not a religious body, that body may, within 42 days of receiving notice of the confirmation, appeal against the confirmation to the Court of Session and seek the determination of that court as to whether the body is a religious body ; and if—

(a) the court determine that the nominating body is a religious body ; and

(b) the said reason was the only reason given for the confirmation,

that determination shall be given effect to by the Registrar General as if it were a direction under this subsection to accept the nomination.

10.—(1) Subject to the provisions of this section, the Registrar General may remove the name of a person registered under section 9 of this Act from the register on the ground that—

(a) that person has requested that his name should be so removed ; or

Removal of celebrant's name from register.

- (b) the body which nominated that person under section 9(1) of this Act no longer desires that he should be so registered ; or
- (c) the marriage ceremony used by the said body is no longer of an appropriate form within the meaning of section 9(3) of this Act ; or
- (d) that person—
 - (i) has, while registered as an approved celebrant, been convicted of an offence under this Act ; or
 - (ii) has, for the purpose of profit or gain, been carrying on a business of solemnising marriages ; or
 - (iii) is not a fit and proper person to solemnise marriages ; or
 - (iv) for any other reason, should not be so registered.

(2) The Registrar General shall not remove the name of a person from the register on any ground mentioned in subsection (1)(d) above unless he has given to that person at least 21 days notice in writing of his intention to do so.

(3) The Registrar General shall—

- (a) in the notice given under subsection (2) above, specify the ground of removal and call upon the said person to show cause, within the period specified in the notice, why his name should not be removed from the register ; and
- (b) consider any representations made to him within the said period by that person.

(4) Where a person's name has been removed from the register on any of the grounds mentioned in paragraphs (c) and (d) of subsection (1) above, that person or the body which nominated him under section 9(1) of this Act may, if aggrieved by the removal, within 28 days of receiving notice of the removal appeal to the Secretary of State, and on any such appeal the Secretary of State may give such direction as he thinks proper to the Registrar General as to the removal from, or restoration to, the register of that name ; and such direction shall be final.

(5) Where a person has received a notice in pursuance of subsection (2) above, he shall not solemnise a marriage unless and until his name is restored to the register or, as the case may be, the Registrar General has decided not to remove his name from the register.

11. A body registered in pursuance of section 9(5)(a)(ii) of this Act shall notify the Registrar General of any of the following events (if practicable, within 21 days of its occurrence)—

Alterations to register maintained under s. 9.

- (a) any change in the name or the address of the body or any amalgamation with any other religious body, giving the name and address of any approved celebrant who is a member of the body so registered ;
- (b) the death of an approved celebrant who is a member of the body so registered ;
- (c) any change of name, address or designation of an approved celebrant who is a member of the body so registered ;
- (d) the cessation of an approved celebrant who is a member of the body so registered from exercising the functions of an approved celebrant, giving his name and address ;

and the Registrar General shall, on receipt of any such notification, make whatever alteration to the register maintained by him under section 9 of this Act as he considers necessary or desirable.

12. The Registrar General may, in accordance with such terms and conditions as may be specified in the authorisation, grant to any person a temporary written authorisation to solemnise—

Temporary authorisation of celebrants.

- (a) a marriage or marriages specified in the authorisation, or
- (b) marriages during such period as shall be specified in the authorisation :

Provided that the authorised person must at the date of the granting of the authorisation be 21 years of age or over.

13.—(1) A marriage shall not be solemnised by an approved celebrant unless—

Preliminaries to solemnisation of religious marriages.

- (a) the parties produce to him before the marriage ceremony a Marriage Schedule, in respect of the marriage, issued in accordance with this Act ;
- (b) both parties to the marriage are present ; and
- (c) two persons professing to be 16 years of age or over are present as witnesses.

(2) A marriage solemnised by an approved celebrant in contravention of paragraph (a) or (b) of subsection (1) above shall be void.

(3) For the avoidance of doubt, a marriage solemnised by an approved celebrant shall not be void merely because the Marriage Schedule specified a different date or place from the date on which, or the place at which, the marriage was solemnised.

Form of ceremony to be used by approved celebrant.

14. An approved celebrant who is a person specified—

- (a) in section 8(1)(a)(i) or (ii) of this Act shall not solemnise a marriage except in accordance with a form of ceremony recognised by the religious body to which he belongs as sufficient for the solemnisation of marriages ;
- (b) in section 8(1)(a)(iii) or (iv) of this Act shall not solemnise a marriage except in accordance with a form of ceremony which includes and is in no way inconsistent with the declarations specified in section 9(3) of this Act.

Registration of religious marriages.

15.—(1) Immediately after the solemnisation of the marriage the Marriage Schedule shall be signed by the parties contracting the marriage, by both witnesses present thereat and by the approved celebrant.

(2) The parties to the marriage shall, within 3 days thereafter, deliver the Marriage Schedule, or send it by post or arrange that it is delivered, to the district registrar.

(3) As soon as possible after receipt of the Marriage Schedule, the district registrar shall cause the particulars as set forth in that Schedule to be entered in the register of marriages kept by him ; and subject to subsection (4) below, he shall not register a religious marriage unless and until he receives a duly signed Marriage Schedule in respect of that marriage.

(4) Where the Registrar General is satisfied that a marriage has been properly solemnised and that the Marriage Schedule in respect of the marriage has been duly signed but has been lost or destroyed, he may direct the district registrar to complete an exact copy of the original Marriage Schedule and, so far as practicable, to arrange for its signature by those persons who signed the original Schedule ; and as soon as possible thereafter, the district registrar shall cause the particulars as set forth in that copy to be entered in the register of marriages kept by him.

Registrar's power to require delivery of Marriage Schedule.

16.—(1) Where after the expiration of 21 days from the date of marriage as entered in the Marriage Schedule that Schedule has not been delivered to the district registrar, he may serve a notice in the prescribed form on either of the parties to the marriage requiring that party within 8 days from the date of service of the notice to deliver the said Schedule, or send it by post, to the district registrar.

(2) If any party on whom a notice has been served in pursuance of subsection (1) above fails to comply with the notice, the district registrar may serve on that party a second notice in the prescribed form requiring that party to attend personally at the registration office of the district registrar, within 8 days from

the date of service of the second notice, for the purpose of delivering the Marriage Schedule to the district registrar to enable him to register the marriage.

Civil marriages

17. For the purpose of affording reasonable facilities for the solemnisation of civil marriages throughout Scotland, the Registrar General— Appointment of authorised registrars.

(a) shall appoint such number of district registrars as he thinks necessary ; and

(b) may, in respect of any district for which he has appointed a district registrar under paragraph (a) above, appoint one or more assistant registrars,

as persons who may solemnise marriages :

Provided that any person appointed under this section must, at the date of his appointment, be 21 years of age or over.

18.—(1) Subject to the provisions of this section, an authorised registrar shall solemnise a civil marriage in his registration office. Places at which civil marriages may be solemnised.

(2) An authorised registrar may, with the approval of the Registrar General, solemnise a civil marriage in the registration office of another authorised registrar.

(3) If either of the parties to an intended civil marriage is unable to attend the registration office of an authorised registrar for the solemnisation of the marriage, an authorised registrar may, subject to the following provisions of this section and on reimbursement of any additional expenditure incurred by him by virtue of this subsection, solemnise the marriage—

(a) at any place in his registration district other than his registration office; or

(b) with the approval of the Registrar General, at any place in any registration district in respect of which there is no authorised registrar.

(4) The authorised registrar shall not solemnise a marriage at any such place as is described in subsection (3)(a) or (b) above unless—

(a) application has been made to him by either of the parties to the intended marriage requesting him to solemnise the marriage at such a place and stating the reason why one of the parties is unable to attend a registration office ; and

(b) subject to subsection (5) below, he is satisfied on consideration of the application that the party is unable

to attend a registration office by reason of serious illness or serious bodily injury and that there is good reason why the marriage cannot be delayed until the party is able to attend a registration office.

(5) If the authorised registrar is not satisfied as mentioned in subsection (4)(b) above, he shall consult the Registrar General who may direct him to solemnise the marriage in accordance with the application made under subsection (4)(a) above or to refuse so to solemnise it.

Marriage ceremony and registration of marriage.

19.—(1) An authorised registrar shall not solemnise a marriage within 14 days of the date of receipt (as entered in the marriage notice book) of a marriage notice in respect of that marriage, unless—

- (a) he has received a written request from one or both of the parties to solemnise the marriage on a specified earlier date stating the reason for the request, and
- (b) he has been authorised to solemnise the marriage on that earlier date by the Registrar General.

(2) A marriage shall not be solemnised by an authorised registrar unless—

- (a) he has available to him at the time of the ceremony a Marriage Schedule, in respect of the marriage, completed in accordance with this Act and the prescribed fee for the marriage has been paid ;
- (b) both parties to the marriage are present ; and
- (c) two persons professing to be 16 years of age or over are present as witnesses.

(3) Immediately after the solemnisation of the marriage the Marriage Schedule shall be signed by the parties contracting the marriage, by both witnesses present thereat and by the authorised registrar who solemnised it.

(4) As soon as possible after the Marriage Schedule has been signed in accordance with subsection (3) above—

- (a) in a case where the marriage has been solemnised in the registration office of the authorised registrar who solemnised it or in any such place as is mentioned in section 18(3) of this Act, that authorised registrar ;
- (b) in a case where the marriage has been solemnised in the registration office of another authorised registrar, that other authorised registrar,

shall cause the particulars as set forth in that Schedule to be entered in the register of marriages kept by him.

20.—(1) Where two persons have gone through a marriage ceremony with each other outside the United Kingdom, whether before or after the commencement of this Act, but they are not, or are unable to prove that they are, validly married to each other in Scots law, an authorised registrar, on an application made to him by those persons, may, subject to the approval of the Registrar General and to subsection (2) below, solemnise their marriage as if they had not already gone through a marriage ceremony with each other. Second marriage ceremony.

(2) Sections 3 to 6 and 18 and 19 of this Act shall apply for the purpose of solemnising a marriage under this section except that—

(a) there shall be submitted to the authorised registrar a statutory declaration by both parties—

(i) stating that they have previously gone through a marriage ceremony with each other; and

(ii) specifying the date and place at which, and the circumstances in which, they went through that ceremony;

(b) section 5(4)(b) of this Act shall not apply in respect of the parties already being married to each other;

(c) the Marriage Schedule shall contain such modifications as the Registrar General may direct to indicate that the parties have previously gone through a marriage ceremony with each other; and

(d) after the Marriage Schedule has been signed in accordance with section 19(3) of this Act, the authorised registrar shall make an endorsement on it in the following terms—

“The ceremony of marriage between the parties mentioned in this Schedule was performed in pursuance of section 20 of the Marriage (Scotland) Act 1977, following a statutory declaration by them that they had gone through a ceremony of marriage with each other on the day of 19 ,
at

Dated the day of 19 ,
(Signature of authorised registrar) ”.

Irregular marriages

21. Where decree of declarator establishing—

(a) a marriage by cohabitation with habit and repute; or

(b) a marriage contracted before 1st July 1940 by declaration *de praesenti* or by promise *subsequente copula*,

has been granted in the Court of Session, the principal clerk of Session shall forthwith cause the decree, the names, designations

Registration
of irregular
marriages.

and addresses of the parties, and the date, as determined by the Court, on which the marriage was constituted to be intimated to the Registrar General, and on receipt of such intimation the Registrar General shall cause the marriage to be registered.

General

Interpreters at marriage ceremony.

22.—(1) Where the person by whom a marriage is to be solemnised under this Act considers that it is necessary or desirable, he may use the services of an interpreter (not being a party or a witness to the marriage) at the marriage ceremony.

(2) The interpreter shall—

- (a) before the marriage ceremony, sign a written statement that he understands, and is able to converse in, any language in respect of which he is to act as interpreter at that ceremony; and
- (b) immediately after the marriage ceremony, furnish the person solemnising the marriage with a certificate written in English and signed by the interpreter that he has faithfully acted as interpreter at that ceremony.

(3) Any fee for the services of the interpreter shall be paid by the parties to the marriage.

Cancellation of entry in register of marriages.

23. If a marriage in respect of which an entry has been made in a register of marriages is found or declared to be void, the Registrar General shall direct the cancellation of the entry.

Offences.

24.—(1) Any person who—

- (a) falsifies or forges any Marriage Schedule, certificate or declaration issued or made, or purporting to be issued or made, under this Act;
- (b) knowingly uses, or gives or sends to any person as genuine, any false or forged Marriage Schedule, certificate, declaration or other document issued or made, or purporting to be issued or made, or required, under this Act;
- (c) being an approved celebrant, solemnises a marriage without a Marriage Schedule in respect of the marriage, issued in accordance with this Act, being available to him at the time of the marriage ceremony;
- (d) not being an approved celebrant or an authorised registrar, conducts a marriage ceremony in such a way as to lead the parties to the marriage to believe that he is solemnising a valid marriage; or
- (e) being an approved celebrant or an authorised registrar, solemnises a marriage without both parties to the marriage being present,

shall be guilty of an offence and shall be liable—

- (i) on conviction on indictment, to a fine or to imprisonment for a term not exceeding 2 years or to both ;
- (ii) on summary conviction, to a fine not exceeding £100 or to imprisonment for a term not exceeding 3 months or to both.

(2) Any person who—

- (a) solemnises a marriage in an area in which by virtue of section 9(4)(b) of this Act he is not permitted to solemnise a marriage ;
- (b) solemnises a marriage in contravention of section 10(5) of this Act ;
- (c) being a person temporarily authorised under section 12(a) of this Act, solemnises a marriage not specified in that authorisation ;
- (d) solemnises a marriage in contravention of section 14 of this Act ; or
- (e) being a party to a marriage, fails to comply with a notice served under section 16(2) of this Act,

shall be guilty of an offence and shall be liable on summary conviction to a fine not exceeding £100.

(3) Summary proceedings for an offence under this Act or, in relation to information supplied under or for the purposes of this Act, section 53(1)(a) of the Registration of Births, Deaths and Marriages (Scotland) Act 1965, may be commenced at any time within the period of 3 months from the date on which evidence sufficient in the opinion of the Lord Advocate to justify the proceedings comes to his knowledge or within the period of 12 months from the commission of the offence, whichever period last expires ; and subsection (3) of section 331 of the Criminal Procedure (Scotland) Act 1975 (date of commencement of summary proceedings) shall have effect for the purposes of this section as it has effect for the purposes of that section.

25.—(1) Any power to make regulations conferred by this Act shall be exercisable by statutory instrument and no such regulations shall be made by the Registrar General except with the approval of the Secretary of State.

(2) Any statutory instrument containing regulations which prescribe fees for the purposes of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) The Statutory Instruments Act 1946 shall apply to a statutory instrument containing regulations made for the purposes of this Act by the Registrar General as if the regulations had been made by a Minister of the Crown.

Interpretation. 26.—(1) Except where the context otherwise requires and subject to subsection (2) below, expressions used in this Act and in the Registration of Births, Deaths, and Marriages (Scotland) Act 1965 have the same meanings in this Act as in that Act.

1965 c. 49.

(2) In this Act, except where the context otherwise requires—

“approved celebrant” has the meaning assigned to it by section 8(2)(a) of this Act;

“authorised registrar” has the meaning assigned to it by section 8(2)(b) of this Act;

“district registrar” means the registrar for the registration district in which the marriage is to be or has been solemnised;

“name” includes surname;

“prescribed” means prescribed by regulations made by the Registrar General;

“religious body” means an organised group of people meeting regularly for common religious worship.

(3) Except where the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment, including this Act.

Transitional and saving provisions.

27.—(1) Where, before the commencement of this Act—

(a) proclamation of banns or publication of notice has been applied for by one or both of the parties to; or

(b) a licence has been granted by a sheriff in respect of, an intended marriage in accordance with an enactment repealed by this Act, then the marriage shall proceed in accordance with the enactments repealed by this Act as if they had not been so repealed:

Provided that this subsection shall cease to have effect in respect of the marriage if—

(i) a certificate of proclamation of banns or publication of notice issued in respect of the said application; or

(ii) the said licence,

ceases to be valid in accordance with any enactment so repealed.

(2) Any form used, and any requirement as to the particulars to be entered in any form used, for the purposes of any enactment repealed by this Act shall continue in force as though prescribed under this Act until other forms or particulars are so prescribed.

(3) Nothing in this Act shall affect the validity of any marriage solemnised or contracted before 1st January 1978.

(4) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section 38 of the Interpretation Act 1889 (which relates to the effect of repeals).

28.—(1) The enactments set out in Schedule 2 to this Act shall have effect subject to the amendments respectively specified in that Schedule, being amendments consequential on the provisions of this Act. Consequential amendments and repeals.

(2) The enactments set out in Schedule 3 to this Act are hereby repealed to the extent specified in column 3 of that Schedule.

29.—(1) This Act may be cited as the Marriage (Scotland) Act 1977. Short title, commencement and extent.

(2) This Act, except this section, shall come into force on 1st January 1978.

(3) This Act, except this section and, in so far as relating to the Marriage with Foreigners Act 1906, the Marriage Act 1939, the Marriage Act 1949 and the Marriage (Scotland) Act 1956, section 28, shall extend to Scotland only. 1906 c. 40.
1939 c. 33.
1949 c. 76.
1956 c. 70.

SCHEDULES

SCH. 2

SCHEDULE 1

DEGREES OF RELATIONSHIP

Column 1

Column 2

1.—*Relationships by consanguinity*

Mother ;	Father ;
Daughter ;	Son ;
Father's mother ;	Father's father ;
Mother's mother ;	Mother's father ;
Son's daughter ;	Son's son ;
Daughter's daughter ;	Daughter's son ;
Sister ;	Brother ;
Father's sister ;	Father's brother ;
Mother's sister ;	Mother's brother ;
Brother's daughter ;	Brother's son ;
Sister's daughter ;	Sister's son ;
Father's father's mother ;	Father's father's father ;
Father's mother's mother ;	Father's mother's father ;
Mother's father's mother ;	Mother's father's father ;
Mother's mother's mother ;	Mother's mother's father ;
Son's son's daughter ;	Son's son's son ;
Son's daughter's daughter ;	Son's daughter's son ;
Daughter's son's daughter ;	Daughter's son's son ;
Daughter's daughter's daughter ;	Daughter's daughter's son.

2.—*Relationships by affinity*

Mother of former wife ;	Father of former husband ;
Daughter of former wife ;	Son of former husband ;
Former wife of father ;	Former husband of mother ;
Former wife of son ;	Former husband of daughter ;
Former wife of father's father ;	Former husband of father's mother ;
Former wife of mother's father ;	Former husband of mother's mother ;
Mother of father of former wife ;	Father of father of former husband ;
Mother of mother of former wife ;	Father of mother of former husband ;
Daughter of son of former wife ;	Son of son of former husband ;
Daughter of daughter of former wife ;	Son of daughter of former husband ;
Former wife of son's son ;	Former husband of son's daughter ;
Former wife of daughter's son ;	Former husband of daughter's daughter.

3.—*Relationships by adoption*

Adoptive mother or former adoptive mother ;	Adoptive father or former adoptive father ;
Adopted daughter or former adopted daughter ;	Adopted son or former adopted son.

SCHEDULE 2

Section 28(1).

CONSEQUENTIAL AMENDMENTS OF OTHER ENACTMENTS

The Foreign Marriage Act 1892 (c. 23)

1. In section 22(4) (validity of marriages solemnised by chaplains of HM Forces serving abroad), for the words "Registration of Births, Deaths and Marriages (Scotland) Acts 1854 to 1938" there shall be substituted the words "Marriage (Scotland) Act 1977".

The Marriage with Foreigners Act 1906 (c. 40)

2. In section 1(1) (British subject giving notice of intended foreign marriage), for the words "the United Kingdom", there shall be substituted the words "any part of the United Kingdom other than Scotland".

3. In section 2(1) (provision for regulations in relation to foreigners intending to marry in Britain), for the words "the United Kingdom", in both places where they occur, there shall be substituted the words "any part of the United Kingdom other than Scotland".

The Marriage Act 1949 (c. 76)

4. In section 37(1) (one party resident in Scotland)—

(a) for paragraph (a) there shall be substituted the following paragraph—

"(a) the party residing in Scotland may give notice of the intended marriage in accordance with section 7 of the Marriage (Scotland) Act 1977 ; "

(b) for paragraph (c) there shall be substituted the following paragraph—

"(c) a certificate issued under section 7(2) of the Marriage (Scotland) Act 1977 to a party shall, for the purpose of that party's intended marriage, have the like force and effect in all respects as a certificate for marriage issued by a superintendent registrar under this Part of this Act ; "

The Marriage (Scotland) Act 1956 (c. 70)

5. In section 1 (notice of marriage intended to be solemnised in Scotland)—

(a) for subsections (1) and (2) there shall be substituted the following subsections—

"(1) Where one party to a marriage intended to be solemnised in Scotland is residing in England and the other is residing in Scotland, the party residing in England may give notice of the intended marriage to the superintendent registrar of the registration district in which he has resided for the period of seven days immediately before the giving of the notice.

(2) Where both parties to a marriage intended to be solemnised in Scotland are residing in England, whether

SCH. 2

in the same registration district or in different registration districts, and one of the parties has a parent who has his usual residence in Scotland—

- (a) the other party may give notice of the intended marriage to the superintendent registrar of the registration district in which he has resided for the period of seven days immediately before the giving of the notice ;
- (b) if the parties live in different registration districts, it shall not be necessary for notice of the intended marriage to be given to the superintendent registrar of the other registration district.

(2A) Section 28(1) of the Marriage Act 1949 (which relates to the declaration to accompany a notice of marriage) shall apply for the purposes of subsections (1) and (2) above as if paragraph (b) of the said section 28(1) required the declaration to state—

- (i) that the person giving the notice has for the period of seven days immediately before the giving of the notice had his usual place of residence within the registration district in which the notice is given ; and
 - (ii) that the marriage is intended to be solemnised in Scotland ; and
 - (iii) that the other party to the intended marriage is resident in Scotland, or has a parent who has his usual residence in Scotland, as the case may be.” ;
- (b) in subsection (3), for the words “ last preceding subsection ” there shall be substituted the words “ foregoing provisions of this section ”.

*The Registration of Births, Deaths and Marriages (Scotland)
Act 1965 (c. 49)*

6. In section 11 (general provision as to fees)—

- (a) after the word “ Act ” where it first occurs there shall be inserted the words “ or the Marriage (Scotland) Act 1977 ” ;
- (b) for the words “ this Act ” where they occur for the second time there shall be substituted the words “ or under this Act or the Marriage (Scotland) Act 1977 ”.

7. In section 12 (fees to be accounted for), at the end there shall be added the words “ and the Marriage (Scotland) Act 1977.”.

8. In section 32(1) (provision of registers etc. by Registrar General), at the end there shall be added the words “ and the Marriage (Scotland) Act 1977.”.

9. In section 52 (sending of documents by post), after the word “ Act ” there shall be inserted the words “ or the Marriage (Scotland) Act 1977.”.

SCHEDULE 3

Section 28(2).

REPEALS

Chapter	Short Title	Extent of Repeal
1567 c. 16. 10 Anne c. 10.	The Marriage Act 1567. The Scottish Episcopals Act 1711.	The whole Act. Section 7.
4 & 5 Will. 4. c. 28.	The Marriage (Scotland) Act 1834.	The whole Act.
41 & 42 Vict. c. 43.	The Marriage Notice (Scotland) Act 1878.	The whole Act.
48 & 49 Vict. c. 61.	The Secretary for Scotland Act 1885.	In the Schedule, the entry relating to marriage notices.
6 Edw. 7. c. 40.	The Marriage with Foreigners Act 1906.	Section 5. In the Schedule, the heading "Part I Provisions Applicable Except in Scotland"; and Part II.
8 Edw. 7. c. 26.	The Naval Marriages Act 1908.	The whole Act.
5 & 6 Geo. 5. c. 40.	The Marriage of British Subjects (Facilities) Act 1915.	The whole Act.
6 & 7 Geo. 5. c. 21.	The Marriage of British Subjects (Facilities) Amendment Act 1916.	The whole Act.
9 & 10 Geo. 5. c. 20.	The Scottish Board of Health Act 1919.	Section 4(1)(g).
19 & 20 Geo. 5. c. 36.	The Age of Marriage Act 1929.	The whole Act.
2 & 3 Geo. 6. c. 33.	The Marriage Act 1939.	Section 1. Section 2(2).
2 & 3 Geo. 6. c. 34.	The Marriage (Scotland) Act 1939.	The whole Act.
5 & 6 Geo. 6. c. 20.	The Marriage (Scotland) Act 1942.	The whole Act.
12 & 13 Geo. 6. c. 76.	The Marriage Act 1949.	Section 37(2).
4 & 5 Eliz. 2. c. 70.	The Marriage (Scotland) Act 1956.	Section 1(4). Sections 2 and 3. In section 4, the words from "and the" to the end.
6 & 7 Eliz. 2. c. 64.	The Local Government and Miscellaneous Financial Provisions (Scotland) Act 1958.	Section 17.
8 & 9 Eliz. 2. c. 29.	The Marriage Enabling Act 1960.	The whole Act.
1965 c. 49.	The Registration of Births, Deaths and Marriages (Scotland) Act 1965.	Part IV. In section 54, subsection (1)(c) and in subsection (2) the words "(c) or".